

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

Filed:

OSWARD A. LA ROSA RAMIREZ,

INDEX NO.

Plaintiff,

Plaintiff designates Queens
County as the place of trial.

-against-

S U M M O N S

THE CITY OF NEW YORK, NEW YORK POLICE
DEPARTMENT and POLICE OFFICER KEVIN CROSBY,

The basis of venue is
Place of occurrence

Defendants.

To the above-named Defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer on the Plaintiff's attorneys within twenty (20) days after the service of this summons, exclusive of the day of service of this summons, or within thirty (30) days after service of this summons is complete if this summons is not personally delivered to you within the State of New York.

In case of your failure to answer this summons, a judgment by default will be taken against you for the relief demanded in the complaint, together with the costs of this action.

Dated: Forest Hills, New York
September 10, 2024



By: Nissim Abaev, Esq.
ABAEV LAW FIRM, PLLC
Attorneys for Plaintiff
OSWARD A. LA ROSA RAMIREZ
108-01 Queens Boulevard, Suite #204
Forest Hills, New York 11375
Tel # (718) 674-6700
Email: Nabaev@TheNewYorkLawfirm.com

DEFENDANTS

THE CITY OF NEW YORK

100 Church Street, 4th Floor
New York, NY 10007

NEW YORK POLICE DEPARTMENT

1 Police Plaza Path
New York, New York 10038

and –

100 Church Street, 4th Floor
New York, NY 10007

POLICE OFFICER KEVIN CROSBY

Place of Employment
1 Police Plaza Path
New York, New York 10038

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

OSWARD A. LA ROSA RAMIREZ,

INDEX NO.

Plaintiff,

-against-

VERIFIED COMPLAINT

THE CITY OF NEW YORK, NEW YORK POLICE
DEPARTMENT and POLICE OFFICER KEVIN CROSBY,

Defendants.

Plaintiff, **OSWARD A. LA ROSA RAMIREZ**, by his attorneys, ABAEV LAW FIRM, PLLC, as and for his Verified Complaint, respectfully alleges, upon information and belief:

1. The Plaintiff, OSWARD A. LA ROSA RAMIREZ, at all times herein mentioned was and still is a resident of the County of Queens and the State of New York.

2. At all times herein mentioned, Defendant THE CITY OF NEW YORK, was and still is a municipal corporation, created, organized and existing under and by virtue of the laws of the State of New York.

3. At all times herein mentioned, Defendant NEW YORK POLICE DEPARTMENT, was and still is a municipal corporation, created, organized and existing under and by virtue of the laws of the State of New York.

4. At all times herein mentioned, Defendant NEW YORK POLICE DEPARTMENT, was and still is an agency of the defendant THE CITY OF NEW YORK.

5. That on or about February 22, 2024 and at all times herein mentioned, the Defendant, POLICE OFFICER KEVIN CROSBY (Sheild No. 7820), was and still is a police officer employed by the defendants THE CITY OF NEW YORK and NEW YORK POLICE DEPARTMENT, and at all time herein was acting in such capacity at the agent, servant and employee of defendants THE CITY OF NEW YORK and NEW YORK POLICE

DEPARTMENT.

6. Within ninety days (90) of February 22, 2024, a *Notice of Claim* in writing was served on behalf of OSWARD A. LA ROSA RAMIREZ, upon Defendants, THE CITY OF NEW YORK and NEW YORK POLICE DEPARTMENT in accordance with Section 50-e of the General Municipal Law.

7. Within ninety days (90) of February 22, 2024, an *Amended Notice of Claim* in writing was served on behalf of OSWARD A. LA ROSA RAMIREZ, upon Defendants, THE CITY OF NEW YORK and NEW YORK POLICE DEPARTMENT, in accordance with Section 50-e of the General Municipal Law.

8. Prior to the commencement of this action, notice of the intention of OSWARD A. LA ROSA RAMIREZ to commence an action, unless the claim presented was adjusted within the prescribed time as set forth by applicable law to adjust such claims, was served on behalf of OSWARD A. LA ROSA RAMIREZ, upon Defendants, THE CITY OF NEW YORK and NEW YORK POLICE DEPARTMENT.

9. Although more than thirty (30) days have elapsed since service of such notice of claim, THE CITY OF NEW YORK and NEW YORK POLICE DEPARTMENT neglected and has refused to pay said claim or adjust same.

10. A hearing pursuant to General Municipal Law 50-h has been held on September 3, 2024.

11. This action is commenced within one (1) year and ninety (90) days from February 22, 2024, the date of the wrongful arrest as herein set forth occurred.

12. On or about February 22, 2024, Defendants, THE CITY OF NEW YORK and NEW YORK POLICE DEPARTMENT and POLICE OFFICER KEVIN CROSBY, their agents, servants and/or employees, acts caused Plaintiff OSWARD A. LA ROSA RAMIREZ, to and wrongfully arrested, handcuffed, confined and maliciously prosecuted.

13. On or about February 22, 2024, a reasonable person in the same circumstances as Plaintiff, OSWARD A. LA ROSA RAMIREZ, would have apprehended, tackled, beaten, abused, humiliated and wrongfully arrested, confined and maliciously prosecuted by Defendants, THE CITY OF NEW YORK and NEW YORK POLICE DEPARTMENT and POLICE OFFICER KEVIN CROSBY.

14. On or about February 22, 2024, a reasonable person in the same circumstances as Plaintiff, OSWARD A. LA ROSA RAMIREZ, would have apprehended and/or feared unfriendly contact.

15. On or about February 22, 2024, the Defendants THE CITY OF NEW YORK and NEW YORK POLICE DEPARTMENT and POLICE OFFICER KEVIN CROSBY, their agents, servants and/or employees, assaulted Plaintiff, OSWARD A. LA ROSA RAMIREZ.

16. On or about February 22, 2024, Defendants THE CITY OF NEW YORK, NEW YORK POLICE DEPARTMENT and POLICE OFFICER KEVIN CROSBY, their agents, servants and/or employees' acts were intended to make contact with OSWARD A. LA ROSA RAMIREZ.

17. On or about February 22, 2024, Defendants THE CITY OF NEW YORK, NEW YORK POLICE DEPARTMENT and POLICE OFFICER KEVIN CROSBY, their agents, servants and/or employees made contact with Plaintiff, OSWARD A. LA ROSA RAMIREZ.

18. On or about February 22, 2024, Defendants THE CITY OF NEW YORK, NEW YORK POLICE DEPARTMENT and POLICE OFFICER KEVIN CROSBY, their agents, servants and/or employees, battered Plaintiff OSWARD A. LA ROSA RAMIREZ.

19. On or about February 22, 2024, Defendants THE CITY OF NEW YORK, NEW YORK POLICE DEPARTMENT and POLICE OFFICER KEVIN CROSBY, their agents, servants and/or employees, negligently and intentionally battered Plaintiff, OSWARD A. LA ROSA RAMIREZ.

20. Plaintiff OSWARD A. LA ROSA RAMIREZ was thereby caused to be seriously physically, psychologically and emotionally injured due to the negligent and intentional acts of the Defendants herein, on February 22, 2024.

21. That the aforesaid conduct on the part of the Defendants constituted a violation of the Plaintiff, OSWARD A. LA ROSA RAMIREZ'S civil rights under 42 USC 1983 in that the Plaintiff was deprived of his rights, privileges and immunities secured to him by the Constitution and laws of the U.S.A. and the New York State Constitution by one who under color of a statute or regulation of a state, caused the Plaintiff to be so deprived.

22. That the aforesaid abuse of process on the Plaintiff by the Defendants, and the subsequent false arrest and imprisonment of the Plaintiff by the Defendants, deprived the Plaintiff of the constitutional right to bodily security and liberty under the Fourteenth Amendment to the United States Constitution, and was an unreasonable physical seizure of the Plaintiff under the Fourth Amendment to the United States Constitution.

23. On or about February 22, 2024, and at all times herein mentioned, Defendants herein, THE CITY OF NEW YORK, NEW YORK POLICE DEPARTMENT and POLICE OFFICER KEVIN CROSBY wrongfully and maliciously and with intent to injure Plaintiff, prosecuted a criminal action against the Plaintiff.

24. By reason of the foregoing abuse of process Plaintiff was deprived of his liberty, suffered pain and distress of mind and body and sustained significant emotional pain and suffering and was compelled to employ an attorney.

25. The above acts by defendants constituted reckless, wanton misconduct and were willfully and maliciously directed against the Plaintiff.

26. This incident occurred on or about February 22, 2024 at the premises known as Target located at 135-05 20th Avenue, College Point, in the County of Queens, State of New York.

27. On or about February 22, 2024, and at all times herein mentioned, plaintiff, OSWARD A. LA ROSA RAMIREZ was lawfully within the premises known as Target located at 135-05 20th Avenue, College Point, in the County of Queens, State of New York.

28. On or about February 22, 2024, and at all times herein mentioned, Defendant POLICE OFFICER KEVIN CROSBY was acting within the scope of his employment and under the direction of Defendants, THE CITY OF NEW YORK and NEW YORK POLICE DEPARTMENT.

29. On or about February 22, 2024, and at all times herein mentioned, Defendant POLICE OFFICER KEVIN CROSBY was hired, screened, trained, retrained, tested, investigated, monitored, and supervised by the Defendants, THE CITY OF NEW YORK and NEW YORK POLICE DEPARTMENT.

30. On or about February 22, 2024, and at all times herein mentioned, the Defendants, THE CITY OF NEW YORK, NEW YORK POLICE DEPARTMENT and POLICE OFFICER KEVIN CROSBY, absent an arrest warrant, probable cause, reasonable cause or any legal justification, and based on fraud, perjury and misrepresentations approached OSWARD A. LA ROSA RAMIREZ for no reason and summarily stopped, searched, grabbed, tackled, punched, assaulted, battered, handcuffed and detained him in an aggressive and excessive manner.

31. On or about February 22, 2024, and at all times herein mentioned, Defendants, THE CITY OF NEW YORK, NEW YORK POLICE DEPARTMENT and POLICE OFFICER KEVIN CROSBY knew or had reason to know that their actions lacked any legal justification in approaching, searching, seizing and arresting Plaintiff OSWARD A. LA ROSA RAMIREZ.

32. That said illegal stop and seizure was part of THE CITY OF NEW YORK and NEW YORK POLICE DEPARTMENT'S custom and practice and/or practice of racial profiling, and/or meeting arrest or summons quotas, and/or the illegal stop and search of civilians which was authorized by, or met with the tacit approval of the defendants under their "Stop, Question and Frisk" policy or program ("Stop and Frisk").

33. That under the "Stop and Frisk" program THE CITY OF NEW YORK and NEW YORK POLICE DEPARTMENT permitted, condoned, or acted with deliberate indifference to the racial disparity of its' application, to the fact that unnecessary or illegal frisks or searches were conducted, that very low percentages of seizures, frisks and searches resulted in arrests or the recovery of contraband, that pretextual reasons are provided for "Stop and Frisk", that officers do not always fill out Stop and Frisk reports, i.e. UF-250s, and are not disciplined when they fail to do so, that stop and frisks are conducted without reasonable suspicion, and that the program of "Stop and Frisk" has resulted in illegal stops, seizures, frisks, arrests and the use of physical force.

34. That the defendant THE CITY OF NEW YORK and NEW YORK POLICE DEPARTMENT have failed to discipline, train, monitor or retrain offending police officers who engaged in stops and frisks without any legal justification and has failed to discipline police officers who fail to fill out required UF-250s.

35. That defendant THE CITY OF NEW YORK and NEW YORK POLICE DEPARTMENT have failed to adequately investigate and/or discipline officers who use excessive force, stop and frisk innocent citizens who have not done anything illegal or acted in suspicious manner warranting a seizure, who failed to report misconduct of fellow officers, who destroy evidence, who engage in fraud, misrepresentation, deceit, and maliciously participate in and instigate prosecutions of innocent civilians.

36. The Plaintiff, because of the foregoing reckless and malicious actions by the defendants, is entitled to exemplary or punitive damages against the Defendants, THE CITY OF NEW YORK, NEW YORK POLICE DEPARTMENT and POLICE OFFICER KEVIN CROSBY in a sum which exceeds the jurisdictional limit of all lower Courts which would otherwise have jurisdiction.

37. On or about February 22, 2024, and at all times herein mentioned, Defendants, THE CITY OF NEW YORK, NEW YORK POLICE DEPARTMENT and POLICE OFFICER KEVIN CROSBY intentionally and deliberately inflicted emotional distress on Plaintiff, OSWARD A. LA ROSA RAMIREZ by maliciously prosecuting Plaintiff, or by abusing the lawful process by unlawful purpose, or by violating Plaintiff, OSWARD A. LA ROSA RAMIREZ's constitutional rights, or by falsely arresting and imprisoning the Plaintiff, by conspiring against Plaintiff, OSWARD A. LA ROSA RAMIREZ, or by interfering with Plaintiff's state civil rights by threats, coercion, or intimidation, or knew or should have known that emotional distress was the likely result of the conduct.

38. Defendants conduct was extreme and outrageous, beyond all possible bounds of decency and utterly intolerable in a civilized community.

39. The actions of the Defendants were the cause of Plaintiff, OSWARD A. LA ROSA RAMIREZ's distress.

40. Plaintiff, OSWARD A. LA ROSA RAMIREZ is a reasonable man.

41. That the Plaintiff did not commit any illegal act, either before or at the time she was falsely arrested and imprisoned, assaulted, battered and deprived of her constitutional rights as set forth in the Constitution of the United States and 42 U.S.C § 1983.

42. The emotional distress sustained by Plaintiff, OSWARD A. LA ROSA RAMIREZ was severe and of a nature that no reasonable man could be expected to endure. (*Agis v. Howard Johnson Co.*, 371 Mass. 140, 145 (1976).

43. As a result of the Defendants' extreme and outrageous conduct, Plaintiff was, is, and, with a high degree of likelihood, will continue to be emotionally distressed due to the intentional exclusion. ("Extreme and outrages conduct is not required if the emotional distress resulted from the commission of another tort." *American Velodur Metal, Inc. v. Schinabek*. 20 Mass.App.Ct. 460, 470-471 (1985).

44. Defendants, THE CITY OF NEW YORK, NEW YORK POLICE DEPARTMENT and POLICE OFFICER KEVIN CROSBY are liable under the doctrine of *respondeat superior*.

45. That as a result of the aforesaid occurrence, the Plaintiff, OSWARD A. LA ROSA RAMIREZ, was caused to and did sustain severe, serious and protracted injuries to his person and body.

46. Due to Defendants' negligence, Plaintiff is entitled to damages in a sum which exceeds the jurisdictional limit of all lower Courts which would otherwise have jurisdiction.

47. Due to Defendants' assault, Plaintiff OSWARD A. LA ROSA RAMIREZ is entitled to damages.

WHEREFORE, the Plaintiff, OSWARD A. LA ROSA RAMIREZ, demands:

a. judgment awarding damages in an amount exceeding the monetary jurisdictional limits of all lower courts which would otherwise have jurisdiction;

b. interest, the costs and disbursements of this action, together with such other and further relief as to this Court seems just and proper.

Dated: Forest Hills, New York
September 10, 2024



By: Nissim Abaev, Esq.
ABAEV LAW FIRM, PLLC
Attorneys for Plaintiff
OSWARD A. LA ROSA RAMIREZ
108-01 Queens Boulevard, Suite #204
Forest Hills, New York 11375
Tel # (718) 674-6700
Email: Nabaev@TheNewYorkLawFirm.com

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

OSWARD A. LA ROSA RAMIREZ,

INDEX NO.

Plaintiff,

-against-

**ATTORNEY'S
VERIFICATION**

THE CITY OF NEW YORK, NEW YORK POLICE
DEPARTMENT and POLICE OFFICER KEVIN CROSBY,

Defendants.

Nissim Abaev, an attorney duly admitted to practice law in the State of New York, makes the following affirmation under the penalty of perjury:

I am of the firm of **ABAEV LAW FIRM, PLLC**, the attorneys of record for the Plaintiff,

I have read the foregoing Complaint and know the contents thereof; the same is true to my own knowledge except as to the matters therein stated to be alleged on information and belief and that as to those matters, I believe them to be true.

This verification is made by affirmant and not by Plaintiff, because he is not in the County of Nassau, which is the County where your affirmant maintains offices.

The grounds of affirmant's belief as to all matters not stated upon affirmant's knowledge are correspondence had with the said Plaintiff, information contained in the said Plaintiff's file, which is in affirmant's possession, and other pertinent data relating thereto.

Dated: Forest Hills, New York
September 10, 2024



Nissim Abaev, Esq.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

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OSWARD A. LA ROSA RAMIREZ,

Plaintiff,

-against-

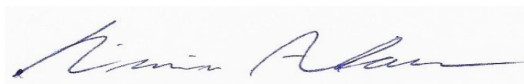
THE CITY OF NEW YORK, NEW YORK POLICE DEPARTMENT and POLICE OFFICER
KEVIN CROSBY,

Defendants.

SUMMONS and VERIFIED COMPLAINT

Pursuant to 22 NYCRR 130-1.1, the undersigned, an attorney admitted to practice in the courts of New York State, certifies that, upon information and belief and reasonable inquiry, the contentions contained in the annexed documents are not frivolous.

Dated: September 10, 2024



By: Nissim Abaev, Esq.
ABAEV LAW FIRM, PLLC
Attorneys for Plaintiff
OSWARD A. LA ROSA RAMIREZ
108-01 Queens Boulevard, Suite #204
Forest Hills, New York 11375
Tel # (718) 674-6700
Email: Nabaev@TheNewYorkLawFirm.com